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Operation of Law Liens

Operations of Law Liens are legal injunctions prohibiting the transfer of ownership placed on a vehicle by the Division on behalf of a governing agency (DES, DOR, Courts of Law, etc.), which is different from liens placed on a vehicle by a lender which are typically added to a vehicle at the time of purchase, and which are intended to be automatically released when the loan is repaid.



These liens affects titles being transferred from the owner with the Operation of Law Lien, meaning **OUT** of their name.

Titles can be transferred to the customer with an Operation of Law Lien, meaning **INTO** their name, but once this is done, the vehicle will be non-transferable under the Operation of Law Lien.

Operations of Law Liens can be added at any time, for no filing fee, and can remain in place indefinitely. In some cases the customer can petition to remove these Operations of Law Liens either by permission of the governing agency, or by satisfying legal requirements (pays court fees / fines, catches up on child support, etc.).

Questions pertaining to the lien shall be referred to the filing agency. The CSR may provide the customer with the lien information found in the Withdrawal section on the Vehicle Information Page. The customer is responsible for contacting the filing agency.



Contacting the Ops Lien Unit (field & ATP offices): If you have a customer at your window and the customer has an Operation of Law Lien issue that you are not able to resolve, have an upline approver email the Ops Lien Unit at opsliens@azdot.gov.

This email should only be used by an Lead, Supervisor or Manager.

- Subject: Customer Waiting - Type of Lien
- Body of email:
 - Customer Name & DL Number
 - VIN
 - Document provided by customer
 - Uploaded to customer documents (yes or no)
 - Brief description of the customer's issue

A response to your email should be received within 15 minutes. If you do not receive a response within 15 minutes or you receive an out-of-office response, please gather the customer's contact information to reach out once you hear back from the Ops Lien Unit.

****ATPs Only:** Same-day responses will only occur Monday thru Friday. Any emails sent on weekends or holidays will be responded to next business day.

- ▶ **Operation of Law Lien (Incident) Types**
- ▶ **Adding an Operation of Law Lien**
- ▶ **Providing Operation of Law Lien Information**
- ▶ **Removing an Operation of Law Lien**
- ▶ **Warning Messages on Title Summary and Title**
- ▶ **Operation of Law Lien Withdrawals and Title Transfers**
- ▶ **Single Vehicle Release Workaround**
- ▶ **Uncommon Liens**



Until we are fully paperless, when you finish the T & R service for the customer, you will print out the Title Summary (artifact), have the customer review and sign, and re-scan into MAX. This will replace the process where you print the T&R Application for the customer to sign.

Policies

[3.8.10 Administrative Hearing Request](#)

[8.2.2 Certificate of Title Without Registration \(Title Only\)](#)

[8.12.2 Vehicle Verification Inspection](#)

[8.4.3 Operation of Law Liens](#)

[8.4.4 Restitution Liens](#)

[8.7.5 Self-Service Storage Facility Vehicle Foreclosure Lien](#)

[8.8.4 Landlord's Lien](#)

[8.8.5 Mechanic's Lien](#)

Forms

[#38-1306 Title Transfer \(Bill of Sale\)](#)

[#46-4416 Motor Vehicle Record Request](#)

[#48-7810 Mechanics Lien Requirements](#)

[#48-0902 Repossession Affidavit](#)

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

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